

S E R V E D

March 9, 2017

FEDERAL MARITIME COMMISSION

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DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO. 1953(I)

KAIRAT NURGAZINOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**NOTICE TO COMMISSION AND THE PARTIES REGARDING
PENDING MOTION OF RESPONDENTS' COUNSEL FOR LEAVE TO WITHDRAW**

On November 16, 2016, Eric Jeffrey, counsel for respondents Michael Hitrinov a/k/a Michael Khitrinov (Hitrinov) and Empire United Lines Co. (Empire) filed a motion for leave to withdraw as counsel. After the motion was filed, counsel and clients engaged in discussions to attempt to resolve their differences and they requested additional time to respond to the motion. No order was issued on the request. Counsel and clients jointly requested more time, and on January 26, 2017, the time was enlarged to March 16, 2017, for Empire and Hitrinov to respond to counsel's motion to permit those discussions to continue. *Ovchinnikov v. Empire*, FMC No. 15-11 (ALJ Jan. 26, 2017) (Order Granting Joint Motion for Further Extension of Time Regarding Motion to Withdraw).

An Initial Decision was served today granting the motion for judgment on the pleadings filed by Empire and Hitrinov. *Ovchinnikov v. Empire*, FMC No. 15-11 (ALJ Mar. 9, 2017) (Initial

Decision Granting Respondents' Motion for Judgment on the Pleadings). The motion for leave to withdraw is still pending. These proceedings are now before the Commission for all purposes. Therefore, it would appear that the Commission has jurisdiction to determine what action, if any, should be taken on the motion for leave to withdraw.



Clay G. Guthridge
Administrative Law Judge